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## Appeal Decision

Site visit made on 25 July 2026

by **A. J. Boughton MA (IPSD) Dip.Arch. Dip.(Conservation) RIBA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 14 September 2026

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**Appeal Ref: 6008667**

**18 Beech Hill Enfield EN4 0JP**

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
  - The appeal is made by Mr Osman Ismail against the decision of The Council of the London Borough of Enfield.
  - The application Ref is 26/00547/FUL.
  - The development proposed is demolition of existing house and erection of two detached houses each with detached double garages, erection of five flats above parking for cars and bicycles and communal leisure facilities and a refuse/recycle bin store.
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### Decision

1. The appeal is dismissed.

### Preliminary Matters

2. There are minor differences between the description of the development that appears on the application form and that used by the Council. These are not substantive to the decision to be made and, lacking confirmation as to the agreement for these changes, I have used that appearing on the application form.
3. In my consideration of this appeal I have had regard to the revised National Planning Policy Framework which was published on 17 August 2026.
4. The Council give four reasons for refusal (RFR) however RFR 1 and 2 both relate to the effect of the proposal on residential character and appearance, the remaining refusal reasons both relate to the internal arrangement of the site and I have therefore resolved the main issues to be as set out below.
5. The appeal site is not in proximity to any SSSI or protected Site or Area but is a very large suburban plot adjacent to open green belt land currently in use as a golf course. The appeal site is, however, nature-invaded with tall grasses and other elements such as stacks of felled tree trunks providing habitat opportunities. The large dwellinghouse proposed to be demolished has features such as timber cladding and eaves detailing which may present opportunity for roosting bats. The Council suggest the absence of a Preliminary Ecological Appraisal (or any suitable ecological surveys) could be addressed by condition, however, this would be unsafe given the duties imposed by The Conservation of Habitats and Species Regulations and established case law. Whilst this would be a matter relevant to the

determination of this appeal, given my conclusions on the Council's reasons for refusal I have not found it necessary to consider this matter further.

## **Main Issues**

6. The main issues are:

- the effect of the development upon the established residential character of the area, also having regard to the appearance of the street scene, and
- whether the development would be provided with safe and suitable access for pedestrians, and whether the development would make adequate arrangements for the management of waste.

## **Reasons**

### *Character and Appearance*

7. The appeal site, 18 Beech Hill (No.18) is a large mid-twentieth century dwelling of individual design, built at a scale which largely fills the width of its substantial plot in an established residential area. It appears to have been unoccupied for a significant period of time, the garden is overgrown and neglected but lacks any significant trees to the extensive rear garden area. Beech Hill is generally populated with large family houses in substantial plots, which in the case of No.18 and immediate neighbours, extends southwards to a rear boundary shared with the Hadley Wood Golf Course which lies within the metropolitan Green Belt. The generally large plots in this part of Beech Hill provide an open-textured and low-density development pattern historically presenting large single dwellings aligned with, but set back from, the road frontage that overall, presents a spacious, verdant, suburban environment in which the general frontage alignment of single dwellings plays a significant role. This strong character has changed to a minor degree with instances of housing to the rear being serviced by access drives between these frontage properties, also large replacement dwellings and some apartment blocks.
8. The Hadley Wood Neighbourhood Plan 2022-2039 (HWNP) acknowledges the pressures for redevelopment or conversion of larger family homes to flatted development, identifying the effect of this on the character of the HWNP area and the supply of family homes. This pressure is evident on the south side of Beech Hill where No.22 Beech Hill<sup>1</sup>, a close neighbour of the appeal site, has been redeveloped with two, three-storey, flatted blocks in a tandem arrangement, retaining a single street entrance with shared underground car parking. However, it is material that the HWNP was 'made' after the permission for No.22 had been granted and its policies therefore carry significant weight in contradicting any suggestions of precedent from the development at No.22.
9. The proposed development would replace the existing single family house with two detached houses aligned with the established frontage and, on garden land to the rear, a block of five apartments incorporating a semi-basement for car parking and shared facilities that include a swimming pool. The overall height of the rear building, although accommodated in part by the general front-rear slope<sup>2</sup> of the site, would nevertheless be greater than the front houses which contain fewer storeys

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<sup>1</sup> Permission granted July 2018 prior to the making of the HWNP

<sup>2</sup> A level difference (drop) of around 2m from that at the site entrance according to information provided

but are set at a similar ground floor level due to the insertion of a semi-basement lower ground floor in the rear building. That building would be in a similar location to the rear block of the development at No.22 but with additional height, and would also broadly align with the detached houses to the rear of 6-10 Beech Hill.

10. Whilst the flatted block would not be prominent in the street scene, being set behind the front houses and some retained planting, the lower ground floor finished level would be similar to the existing ground levels at the rear boundary. In consequence it would be much more prominent than any of the other buildings in this rear alignment that I have mentioned due to its additional height and, there being little mitigation in terms of retained trees, would unacceptably dominate the surrounding area behind the frontage buildings. It would, in particular, conflict with Policy DMD 83 of the Enfield Development Management Document Adopted November 2014 (Enfield DMD) which indicates that development adjacent to the Green Belt should not increase the visual dominance and intrusiveness of the built form by way of by way of height, scale and massing.
11. Policies DMD5 of the Enfield DMD, Policy CP30 of the Enfield Plan Core Strategy 2010-2025 (CS), and Policy D3 of the London Plan, seek, amongst other things, to ensure that development would not result in a clustering of conversions and should reinforce local distinctiveness. These policies are amplified with specific provisions in the HWNP. Importantly, in pursuit of these objectives, Policy HW11 of the HWNP repeats specific empirical limits originally set in Policy DMD5 of the Enfield DMD. In particular, it stipulates that flatted development which replaces single family dwellings must not exceed (either) '*20% of all properties along any 200m of a road*' or '*1 out of a consecutive row of 5 dwellings*'. Even if it were argued that a consecutive row of 5 dwellings might be identified to exclude No.22, the 20% restriction applies to *any* 200m of a road<sup>3</sup>. This is a distance which would include both the appeal site and No.22 within a block of no more than 7 housing plots<sup>4</sup> fronting the road. I therefore consider there would be a significant in-principle conflict with the development plan on that point alone to which significant weight should be attached due to the harm on the residential character of the area that I have previously described.
12. The Council have pointed to a recently dismissed appeal<sup>5</sup> for a similar development to that currently found at No.22, but at No.26 Beech Hill<sup>6</sup> where the Inspector concluded the proposed intensification of flatted development on the two sites would be harmful to the character of the area. Although the proposal subject to this appeal differs from these schemes in that it proposes flatted development limited to one building located to the rear of the site and two houses to the frontage, these differences do not indicate that I should reach a different conclusion in this case. To do so would be inconsistent with my conclusions in the preceding paragraph; that the proposed rear building would unacceptably dominate the surrounding area due to its height and mass.
13. The parties have been invited to comment upon the relevance of the revised National Planning Policy Framework (August 2026) (Framework), in particular

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<sup>3</sup> Emphasis added.

<sup>4</sup> The insertion of flatted development at No.18 would result in 2/7 or 28.5% of those plots.

<sup>5</sup> Ref: APP/Q5300/W/24/3345524

<sup>6</sup> Located immediately adjacent to No.22 for a total of nine apartments.

Section 12; Making Effective Use of Land which is directed at easing approval for housing within settlements. Paragraph L2 (1) requires substantial weight to be given to the benefits of a development proposal which (at (d)) ‘... *creat(es) additional homes.....through sensitive redevelopment or additional development within existing plots...*’. However, whilst I note the comments of the appellant, the provisions at sub-paragraph (iii) make clear that where development would occupy residential curtilages it should ‘*not occupy more than twice the footprint of all existing buildings on the site.....unless additional development can be accommodated without harm to the overall character of the area*’. The proposal would more than double the existing footprint and would not be the ‘sensitive redevelopment’ stipulated in the Framework because there would be significant harm to the residential character of the area from the proposal. I consider, therefore, that the ‘substantial weight’ indicated by these provisions is not available to the proposed development.

14. Overall, I consider the proposal would not achieve the fine balance sought in the development plan between allowing additional development that is necessary to support housing delivery and protecting established character, of, in this case, Beech Hill. Further, even if I were to conclude, as the appellant suggests, that the location of the rear flatted block removes harm to the character of the street scene, this does not mitigate the in-principle conflict set out in HW11 which is directed at a broader consideration of residential character noting, in Policy HW12 of the HWNP, that development should have regard to the prevailing building height. The proposal would conflict with Policies DMD5, DMD6 and DMD 83 of the Enfield DMD and with Policies HW11 and HW12 of the HWNP which, taken together seek that development should respect the scale and form of existing patterns of development, should not overly dominate the adjacent Green Belt, and, further, that conversion to flatted accommodation should not be clustered such that the residential character of the area is adversely affected.

#### *Pedestrian Access and Waste Management*

15. The Council suggest the layout of pathways within the site does not provide safe access to the rear building and also express concern that the arrangements for refuse are unsuitable due to the distance and route by which residents in the flatted block would have to bring their individual bins to the collection building.
16. The proposal shows a single pedestrian gate access however there is no identifiable route for pedestrians or visitors wishing to access the flatted block beyond the frontage of the two front houses. As submitted it is likely that the central driveway, which is confined by the flank walls of the front houses, would operate as a shared surface for cars, pedestrians and cycles. Whilst it may be possible to adjust, by condition, the hard surface detailing to designate a pedestrian route and at the same time moderate conflicting vehicle movements, I consider, given the extent of site coverage by buildings and likely levels changes to the site<sup>7</sup> which would arise from the development, this would not necessarily result in a satisfactory scheme in terms of levels and gradients. Such information absent I consider the development fails to accords with Policy DMD 47 of the Enfield DMD, which seeks

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<sup>7</sup> Some appear to be indicated in the images provided by the appellant.

that development should provide attractive, safe, clearly defined and convenient routes for pedestrians including those with disabilities.

17. My conclusion on the third refusal reason is also relevant to the Council's concerns as to waste management, which presumes occupiers of the rear flatted block would be responsible for moving their individual waste and recycling to the collections point, a distance uphill, depending on the point of origin, of at least 50m. I have considered the plans submitted and whilst the flats would have communal facilities and it is possible that their waste and recycling could be managed in a more practical manner, the submitted plans provide no indication of any alternative arrangements to that of individual owners carrying their waste and recycling an excessive distance. Having to do so frequently, there being no indication of storage facilities within the flatted block, would risk detriment of the visual and environmental amenity of the development from spillage or reluctance to carry such waste a very significant distance. I therefore consider the proposal conflicts with Policy DMD 8 of the Enfield DMD which seeks, amongst other things, that there should be adequate arrangements for refuse storage.

### **Conclusion.**

18. I have concluded that the proposed development would, both by the insertion of flatted development at the rear of the appeal site in conflict with the limits set out in Policy HW 11 of the HWNP and from its height and prominence in a previously undeveloped location, that there would be significant harm to the established residential character of this part of Beech Hill which would conflict with Policies DMD5 and DMD81 of the Enfield DMD, Policy CP30 of the CS and Policy D3 of the London Plan. Together these seek to ensure development is sensitive to the characteristics, appearance and setting of the surrounding area. With my conclusions on the second main issue and all matters raised taken into account, my reasoning directs that the proposed development would conflict with the development plan taken as a whole. In reaching these conclusions I have had regard to the submission of the appellant as to the effect of recently revised national policy. Consequently the appeal should be dismissed.

*Andrew Boughton*

INSPECTOR